



HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 14478 of 2026

Shabanam Begam

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Mohd Arif, Saher Naqvi
Counsel for Respondent(s)	:	C.S.C., Udit Chandra

Court No. - 29

HON'BLE ARINDAM SINHA, J.

HON'BLE SATYA VEER SINGH, J.

1. Ms. Saher Naqvi, learned advocate appears on behalf of petitioner and submits, her client has challenged communication dated 17th October, 2025 issued by the supply company, requiring her client to obtain consent from her landlord. On query she submits, her client has tenancy agreement dated 8th February, 2008 from her landlord, since deceased. His son is interested in evicting her client hence, she is unable to obtain the consent. There be direction upon the supply company to give the connection.

2. Mr. Gireesh Chandra Tiwari, learned advocate, Standing Counsel appears on behalf of State. Mr. Udit Chandra, learned advocate appears on behalf of respondent nos.2 and 3 (the supply company). He submits, there is provision under clause 4.4 in Uttar Pradesh Electricity Supply Code, 2005, for supply being given on furnishing indemnity, where the tenant is unable to obtain consent from the landlord. On query he submits, in event the tenant runs away without paying consumption charges, the arrears will attach to the premises. That means, a tenant obtaining electricity without consent from the landlord and not paying the charges therefor, will visit the landlord with consequences. On further query Mr. Chandra submits, prepaid connection can be given under sub-clause (vii) in clause 4.4 to Jhuggi/hutments/Patri shopkeepers. Petitioner wants regular connection.

3. Mr. Akash Gaurav (son of petitioner's deceased landlord) is added as respondent no.4. Petitioner has leave to make the amendment in Court, to be counter-signed by Court Master. Amended copy of the writ petition be served on added respondent by registered/speed post with A.D. Petitioner will put in the requisites.

4. List on 22nd May, 2026 as fresh.

April 24, 2026
Kpy

(Arindam Sinha,J.)

(Satya Veer Singh,J.)